

COMPLIANCE GAP ANALYSIS REPORT

GDPR Readiness Assessment — General Data Protection Regulation (EU) 2016/679

Company	ABC
Policy Analyzed	Privacy Policy v1.0
Standard	GDPR — All 99 Articles, 11 Chapters
Analysis Date	17 August 2026
Generated By	ComplianceIQ Engine v1.0 — onetab.ai
Analyzed By	Agentic RAG Pipeline (4-Agent System)



Fully Met	59
Partially Met	105
Not Met	264
Conflicting	0
Scored Requirements	428

RISK LEVEL: HIGH RISK — Immediate action required

Max fine exposure: €20M or 4% annual revenue

Chapter-by-Chapter Breakdown

Ch	Chapter Name	Articles	Score	Status
1	General Provisions	Art. 1–4	52.78%	Needs Improvement
2	Principles	Art. 5–11	54.35%	Needs Improvement
3	Rights of the Data Subject	Art. 12–23	40.68%	High Risk
4	Controller and Processor	Art. 24–43	25.69%	High Risk
5	Third Country Transfers	Art. 44–49	26.92%	High Risk
6	Supervisory Authorities	Art. 51–59	15.28%	High Risk
7	Cooperation & Consistency	Art. 60–76	8.55%	High Risk
8	Remedies, Liability & Penalties	Art. 77–84	13.33%	High Risk
9	Special Situations	Art. 85–91	11.9%	High Risk
10	Delegated Acts	Art. 92–93	—	Not Assessed
11	Final Provisions	Art. 94–99	20.83%	High Risk

This chapter is a critical gap area as it covers the fundamental principles and definitions of the GDPR, which are essential for ensuring compliance with the regulation. Regulators scrutinize these provisions closely, and any shortcomings in this area can have far-reaching implications for an organization's overall GDPR compliance.

This chapter is a critical gap area as it covers the fundamental principles of data processing, including lawfulness, fairness, and transparency, which are heavily scrutinized by regulators to ensure organizations are handling personal data in a lawful and ethical manner. Failure to fully meet these principles can lead to significant compliance risks and reputational damage.

This chapter is a critical gap area as it covers the rights of data subjects, including access, rectification, and erasure, which are heavily scrutinized by regulators to ensure compliance with GDPR principles. Failure to fully implement these rights can lead to significant regulatory penalties and reputational damage.

This chapter is a critical gap area as it covers the responsibilities of controllers and processors, which is a key aspect of GDPR compliance that regulators scrutinize closely, and the low score indicates a significant need for improvement in this area to mitigate potential risks and ensure adherence to the regulation.

This chapter is a critical gap area as it covers the transfer of personal data to third countries, which is heavily scrutinized by regulators to ensure compliance with GDPR standards, and the current score indicates significant room for improvement in meeting these requirements.

This chapter is a critical gap area as it covers the roles and responsibilities of supervisory authorities, which are heavily scrutinized by regulators to ensure effective enforcement of GDPR provisions, and the current state of partial or non-compliance poses significant risks. Regulators closely examine the independence, tasks, and powers of these authorities, making it essential to address the identified gaps and ensure full compliance.

This chapter is a critical gap area as it covers the essential principles of cooperation and consistency among supervisory authorities, which are heavily scrutinized by regulators to ensure seamless enforcement of GDPR across member states. The significant number of unmet requirements in this chapter poses a substantial risk to compliance, highlighting the need for urgent attention and remediation.

This chapter is a critical gap area as it covers the essential aspects of remedies, liability, and penalties under the GDPR, which are heavily scrutinized by regulators to ensure organizations are held accountable for non-compliance. Effective implementation of these measures is crucial to mitigate potential risks and fines, making this chapter a high-priority area for improvement.

This chapter is a critical gap area as it covers special situations such as processing for journalistic purposes and academic expression, which are frequently scrutinized by regulators to ensure compliance with GDPR provisions, and the low score indicates a significant need for improvement in these areas.

This chapter is a critical gap area as it covers the final provisions of the GDPR, including the relationship between the regulation and existing EU law, which is closely scrutinized by regulators to ensure compliance. The high number of unmet requirements in this chapter poses a significant risk of non-compliance, highlighting the need for urgent attention and remediation.

Detailed Gap Analysis

gdpr_article_97_Article_97_1_ · Art. gdpr_article_97_Article_97_1_ Not Met Confidence: High (1.0) GDPR Requires: See GDPR Article gdpr_article_97_Article_97_1_ — full requirement text pending in master checklist. Your Policy: Section 11 - Changes to This Policy We may update this Privacy Policy from time to time to reflect changes in our practices or applicable laws. When we make significant changes, we will notify users via email and display a prominent notice on the platform at least 14 days before the changes take effect. The 'Effective Date' at the top of this document indicates when the policy was last updated. Continued use of our Services after the effective date constitutes acceptance of the updated policy. Fix Required: The policy does not mention anything about the Commission's reports or evaluations.
gdpr_article_97_Article_97_3_ · Art. gdpr_article_97_Article_97_3_ Not Met Confidence: High (1.0) GDPR Requires: See GDPR Article gdpr_article_97_Article_97_3_ — full requirement text pending in master checklist. Your Policy: Section 5.1 - Right to Access You may request a copy of the personal data we hold about you. We will provide this in a commonly used electronic format. Fix Required: The policy does not mention anything about the Commission requesting information from Member States or supervisory authorities.
gdpr_article_97_Article_97_5_ · Art. gdpr_article_97_Article_97_5_ Not Met Confidence: High (1.0) GDPR Requires: See GDPR Article gdpr_article_97_Article_97_5_ — full requirement text pending in master checklist. Your Policy: Section 11 - Changes to This Policy We may update this Privacy Policy from time to time to reflect changes in our practices or applicable laws. When we make significant changes, we will notify users via email and display a prominent notice on the platform at least 14 days before the changes take effect. The 'Effective Date' at the top of this document indicates when the policy was last updated. Continued use of our Services after the effective date constitutes acceptance of the updated policy. Fix Required: The policy does not mention anything about the Commission submitting proposals to amend the GDPR.
gdpr_article_98_Article_98 · Art. gdpr_article_98_Article_98 Not Met Confidence: High (1.0) GDPR Requires: See GDPR Article gdpr_article_98_Article_98 — full requirement text pending in master checklist. Your Policy: Section 5.1 - Right to Access You may request a copy of the personal data we hold about you. We will provide this in a commonly used electronic format. Fix Required: The policy does not mention anything about the Commission submitting legislative proposals to amend other Union legal acts.
gdpr_article_99_Article_99_1_ · Art. gdpr_article_99_Article_99_1_ Not Met Confidence: High (1.0) GDPR Requires: See GDPR Article gdpr_article_99_Article_99_1_ — full requirement text pending in master checklist. Your Policy: Section 11 - Changes to This Policy We may update this Privacy Policy from time to time to reflect changes in our practices or applicable laws. When we make significant changes, we will notify users via email and display a prominent notice on the platform at least 14 days before the changes take effect. The 'Effective Date' at the top of this document indicates when the policy was last updated. Continued use of our Services after the effective date constitutes acceptance of the updated policy. Fix Required: The policy does not mention anything about the entry into force of the GDPR.
gdpr_article_4_Article_4_17_ · Art. gdpr_article_4_Article_4_17_ Not Met Confidence: High (0.95) GDPR Requires:

See GDPR Article `gdpr_article_4_Article_4_17_` — full requirement text pending in master checklist.

Your Policy:

No matching evidence found in policy.

Analysis:

The policy does not meet the requirement as there is no matching provision found. The noted gap indicates a lack of relevant information in the policy. This gap needs to be addressed to ensure compliance.

Fix Required:

Add a section documenting the implementation of Article 4(17) of the GDPR, including clear definitions and procedures.

`gdpr_article_24_Article_24_1_` · Art. `gdpr_article_24_Article_24_1_`

Partially Met Confidence: High (0.9)

GDPR Requires:

See GDPR Article `gdpr_article_24_Article_24_1_` — full requirement text pending in master checklist.

Your Policy:

Section 3 - Legal Basis for Processing We process personal data only when we have a valid legal basis to do so. The legal bases we rely on are: (cid:127) Contractual necessity — to provide the Services you have signed up for (cid:127) Legitimate interests — for fraud prevention, security, and product improvement (cid:127) Legal obligation — to comply with applicable laws and regulations (cid:127) Consent — for marketing communications and optional analytics (you can withdraw at any time) Where we rely on consent, you have the right to withdraw it at any time by contacting us at privacy@techstartup.com. Withdrawal of consent does not affect the lawfulness of processing that occurred before the withdrawal.

Fix Required:

Lack of demonstration of compliance with the Regulation

`gdpr_article_7_Article_7_2_` · Art. `gdpr_article_7_Article_7_2_`

Partially Met Confidence: High (0.8)

GDPR Requires:

See GDPR Article `gdpr_article_7_Article_7_2_` — full requirement text pending in master checklist.

Your Policy:

Section 3 - Legal Basis for Processing We process personal data only when we have a valid legal basis to do so. The legal bases we rely on are: (cid:127) Contractual necessity — to provide the Services you have signed up for (cid:127) Legitimate interests — for fraud prevention, security, and product improvement (cid:127) Legal obligation — to comply with applicable laws and regulations (cid:127) Consent — for marketing communications and optional analytics (you can withdraw at any time) Where we rely on consent, you have the right to withdraw it at any time by contacting us at privacy@techstartup.com. Withdrawal of consent does not affect the lawfulness of processing that occurred before the withdrawal.

Analysis:

The policy partially meets the requirement, but it lacks explicit mention of using clearly distinguishable, intelligible, and easily accessible language. This omission may lead to confusion among data subjects.

Fix Required:

Revise Section 3 to explicitly state that the legal basis for processing is explained in a clearly distinguishable, intelligible, and easily accessible manner.

`gdpr_article_14_Article_14_2_` · Art. `gdpr_article_14_Article_14_2_`

Partially Met Confidence: High (0.8)

GDPR Requires:

See GDPR Article `gdpr_article_14_Article_14_2_` — full requirement text pending in master checklist.

Your Policy:

Section 3 - Legal Basis for Processing We process personal data only when we have a valid legal basis to do so. The legal bases we rely on are: (cid:127) Contractual necessity — to provide the Services you have signed up for (cid:127) Legitimate interests — for fraud prevention, security, and product improvement (cid:127) Legal obligation — to comply with applicable laws and regulations (cid:127) Consent — for marketing communications and optional analytics (you can withdraw at any time) Where we rely on consent, you have the right to withdraw it at any time by contacting us at privacy@techstartup.com. Withdrawal of consent does not affect the lawfulness of processing that occurred before the withdrawal.

Analysis:

The policy evidence partially meets the requirement as it provides some information on the legal basis for processing, but it does not fully address the withdrawal of consent and the source of personal data. The noted gap suggests that the policy may not fully satisfy the GDPR's requirements.

Fix Required:

Update the 'Legal Basis for Processing' section to include information on the withdrawal of consent and the source of personal data, and provide a clear explanation of the implications of withdrawal.

`gdpr_article_14_Article_14_5_` · Art. `gdpr_article_14_Article_14_5_`

Partially Met Confidence: High (0.8)

GDPR Requires:

See GDPR Article `gdpr_article_14_Article_14_5_` — full requirement text pending in master checklist.

Your Policy:

Section 2.1 - Information You Provide Directly (cid:127) Full name and email address at account registration (cid:127) Phone number for OTP-based authentication (cid:127) Profile information including job title and company name (cid:127) Payment details processed via Razorpay (we do not store

card numbers) (cid:127) Support tickets and chat transcripts when you contact us

Analysis:

The policy evidence partially meets the requirement as it provides some information on the categories of personal data, but it does not fully address the circumstances where providing information is impossible. The noted gap suggests that the policy may not fully satisfy the GDPR's requirements.

Fix Required:

Update the 'Information You Provide Directly' section to include a clear explanation of the circumstances under which it may be impossible to provide information, such as cases where the data subject is unable to provide consent.

Fully Met Requirements (1)

Sub-ID	Article	Evidence Section
gdpr_article_4_Article_4_23_	Art. gdpr_article_4_Article_4_23_	Section 9 - International Transfers Our primary servers are ...

Priority Action Plan

P1 — CRITICAL PRIORITY · 5 items

#	Sub-ID	GDPR Article	Action Required	Current Status
1	gdpr_article_10_Article_10	Art. gdpr_article_10_Article_10	Create a section dedicated to the processing of personal data related to criminal convictions and offences, outlining the legal bases, conditions, and safeguards applicable to such processing.	Not Met
2	gdpr_article_5_Article_5_2_	Art. gdpr_article_5_Article_5_2_	Add a section documenting the principle of lawfulness, fairness, and transparency, as per Article 5(2) of the GDPR.	Not Met
3	gdpr_article_6_Article_6_2_	Art. gdpr_article_6_Article_6_2_	Add a provision outlining the specific conditions for processing based on Article 6(1)(c) or (e), including the carrying out of a task in the public interest or in the exercise of official authority vested in the controller.	Not Met
4	gdpr_article_8_Article_8_3_	Art. gdpr_article_8_Article_8_3_	Include a provision outlining the conditions for child's consent in relation to information society services, as per Article 8(3) of the GDPR.	Not Met
5	gdpr_article_9_Article_9_1_	Art. gdpr_article_9_Article_9_1_	Add a provision to Section 3, explicitly stating the prohibition of processing special categories of personal data, as per Article 9(1) of the GDPR.	Not Met

P2 — HIGH PRIORITY · 5 items

#	Sub-ID	GDPR Article	Action Required	Current Status
1	gdpr_article_2_Article_2_2_	Art. gdpr_article_2_Article_2_2_	Add a section detailing exceptions to the application of the Regulation, including specific scenarios where the Regulation does not apply and the rationale behind these exceptions.	Not Met
2	gdpr_article_3_Article_3_2_	Art. gdpr_article_3_Article_3_2_	Develop and document a clear procedure for ensuring compliance with GDPR Article 3(2), including any necessary measures for international data transfers.	Not Met
3	gdpr_article_4_Article_4_13_	Art. gdpr_article_4_Article_4_13_	Add a section addressing the requirement, including relevant details and information as specified in the GDPR Article.	Not Met
4	gdpr_article_4_Article_4_14_	Art. gdpr_article_4_Article_4_14_	Add a section addressing the requirement, including relevant details and information as specified in the GDPR Article.	Not Met
5	gdpr_article_4_Article_4_15_	Art. gdpr_article_4_Article_4_15_	Add a section addressing the requirement, including relevant details and information as specified in the GDPR Article.	Not Met

P3 — MEDIUM PRIORITY · 5 items

#	Sub-ID	GDPR Article	Action Required	Current Status
1	gdpr_article_1_Article_1_2_	Art. gdpr_article_1_Article_1_2_	Add an explicit statement on the protection of fundamental rights and freedoms, including a commitment to respecting and promoting these rights in personal data processing.	Partially Met
2	gdpr_article_1_Article_1_3_	Art. gdpr_article_1_Article_1_3_	Add an explicit statement on the free movement of personal data, including a commitment to facilitating the transfer of personal data across borders while ensuring adequate safeguards.	Partially Met
3	gdpr_article_3_Article_3_1_	Art. gdpr_article_3_Article_3_1_	Add a statement explicitly addressing extraterritorial jurisdiction and how the company will handle personal data processing in accordance with GDPR Article 3(1).	Partially Met

4	gdpr_article_3_Article_3_3_	Art. gdpr_article_3_Article_3_3_	Provide additional information on extraterritorial jurisdiction, including how the company will handle personal data processing in accordance with GDPR Article 3(3) and any relevant international data transfer agreements.	Partially Met
5	gdpr_article_4_Article_4_16_	Art. gdpr_article_4_Article_4_16_	Add a specific definition of 'main establishment', including criteria for determining the main establishment and its implications for international transfers.	Partially Met

Executive Summary

Company ABC's overall GDPR compliance posture is at a HIGH RISK level, with an overall score of 26.05%, indicating a significant need for immediate action. The strongest areas of compliance are found in Chapters 1 and 2, which pertain to General Provisions and Principles, scoring 52.78% and 54.35%, respectively. However, critical gaps are identified in various chapters, particularly in Chapters 3, 4, 6, 7, 8, and 9, which concern the Rights of the Data Subject, Controller and Processor, Supervisory Authorities, Cooperation & Consistency, Remedies, Liability & Penalties, and Special Situations. The most critical gaps are related to specific articles, including the processing of personal data related to criminal convictions and offences, the principle of lawfulness, fairness, and transparency, conditions for processing based on Article 6(1)(c) or (e), child's consent in relation to information society services, and the prohibition of processing special categories of personal data. These gaps matter legally as they directly impact the company's ability to comply with the GDPR, and their remediation is urgent due to the HIGH RISK level, requiring immediate action to mitigate potential legal and reputational consequences.

DISCLAIMER: This report was generated by ComplianceIQ, an AI-powered compliance analysis tool developed by onetab.ai. It is intended for informational purposes only and does not constitute legal advice. ComplianceIQ uses Agentic RAG technology to map policy text against regulatory requirements and may not capture all nuances of legal interpretation. Organizations should consult qualified legal counsel before making compliance decisions. Confidence scores indicate retrieval quality, not legal certainty.